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Solicitation/Contract Form Continuation

Instrument Name: Grounds Maintenance Services Ashley, PA

Product Service Code : S201

THIS REQUIREMENT IS SOLICITED AS 100% TOTAL SMALL BUSINESS SET ASIDE

THIS REQUIREMENT IS SUBJECT TO THE AVAILABILITY OF FUNDS

1. The Army Contracting Command - New Jersey (ACC-NJ) on behalf of the 99th Readiness Division DPW has a requirement to procure new Grounds Maintenance Services. The result of this contract is to provide a clean workplace in accordance with the Performance Work Statement at Chaplain L.J. Sabalis Memorial USARC 140 Stewart Road Ashley, PA 18706.
2. The Government intends to award a single, firm-fixed-price (FFP) contract. The period of performance for this effort shall consist of a 12-month base period and four 12-month option periods from date of contract award.
3. The Offeror must be registered in the System for Award Management (SAM) in order to be eligible to receive a Department of Defense contract award. If you need to register in SAM go to <https://www.SAM.gov>
4. See Federal Acquisition Regulation (FAR) Clause 52.212-1, "Instructions to Offerors - Commercial Services" and FAR 52.212-1, Addendum for additional information.
5. See FAR Clause 52.212-2, "Evaluation - Commercial Services" and FAR 52.212-2, Addendum for additional information and evaluation criteria.
6. A site visit is not mandatory but is highly recommended. In no event shall failure to inspect the site constitute grounds for a claim after contract award. A Site Visit is available upon request 24 hours prior to the dates listed below. Offerors requesting a site visit shall provide a list of

attendees to include the company name, visitor's names, driver's license numbers and state of issues, and vehicle information (make/model/license plate number). Visitors must have a driver's license or state issued ID and proof of auto insurance for entry. The site visit dates and times are as follows:

PRIMARY SITE VISIT DATE 13 May 2026 10:00AM EST

ALTERNATE SITE VISIT DATE 14 May 2026 10:00AM EST

ALL VENDORS MUST CONTACT THE BELOW POINT OF CONTACT VIA E-MAIL IF THEY PLAN TO ATTEND. PLEASE PROVIDE WHAT DATE YOU WILL BE ATTENDING.

Primary Point of Contact: Scott Kawski Scott.w.kawski.civ@army.mil

Secondary Point of Contact: George Henry George.w.henry6.ctr@army.mil

7. All questions regarding this solicitation shall be submitted via Email no later than 18 May 2026 at 10:00 EST to the Contract Specialist: Timothy McCleary timothy.j.mccleary.civ@army.mil. The questions will be answered all at once and uploaded to the Contract Opportunities website at <https://www.sam.gov> posting after the question period has ended.

8. The Procurement Integrated Enterprise Environment (PIEE) (<https://piee.eb.mil>) is the Department's core tool for facilitating full utilization of electronic processing of data and documents in the Procure-to-Pay environment. Within that environment, we developed the Solicitation Module to provide a capability for secure timestamped submission of contractor proposals for DOD contracting offices. The Solicitation Module enables posting of solicitations to a widespread or restricted audience. This includes the ability to post a draft or final solicitations, amendments, and attachments. Government users can designate either the entire solicitation or specific attachments as limited to use by specific companies. Contractors must submit their proposals via the portal and contracting personnel are then able to use the portal to distribute proposals to reviewers. A Proposal Manager must submit the proposal but must not wait until the final due date for submission, these proposals will be processed prior to the Contracting Office having viewing access. To ensure your proposal reaches the Contracting Office by the due date do not wait until the final moment.

Training and instructions are accessible through PIEE - Web Based Training at <https://pieetraining.eb.mil/wbt/> Frequently Asked Questions (FAQs) and additional training, go to the DoD Procurement Toolbox - eBusiness -- Solicitation Module at <https://dodprocurementtoolbox.com/sitepages/solicitation-module>

9. COMPLETING A QUOTE FOR SUBMITTAL

- a. Quotes shall be posted to the PIEE solicitation website. Offerors that are not posted to this site will be considered non-responsive and shall not be considered for award.
- b. The Offeror shall provide the name, title, address, email address, and telephone number of the company/division point of contact regarding business decisions made with respect to the proposal and who can contractually obligate the company. In addition, the contractor shall sign and acknowledge any potential resulting amendments to this solicitation. In doing so, the offeror accedes to the contract terms and conditions as written in the Solicitation.
- c. The Offeror shall submit a price for each FFP Contract Line Item Number (CLIN) on the Standard Form (SF) 1449 Continuation Sheets of the solicitation. The Government maintains a tax-exempt status.
- d. The offeror shall submit a signed SF1449 (Pg. 1, Block 30a. Signature of Offeror /Contractor). The offeror is required to complete blocks 17, 30a, 30b, and 30c of the SF1449. In doing so, the Offeror accedes to the contract terms and conditions as written in the solicitation.
- e. Pricing for each CLIN must be submitted in the proper format. The proper format consists of $\text{QUANTITY} * \text{UNIT PRICE} = \text{AMOUNT}/\text{NET AMOUNT}$. In the event there is a discrepancy in the calculation, the UNIT PRICE will be held to the intended price multiplied by the QUANTITY. If the offeror shows only the AMOUNT/NET AMOUNT, but fails to enter a UNIT PRICE, the AMOUNT /NET AMOUNT divided by the QUANTITY will be held to be the intended price.
- f. The Offeror shall provide proof of Valid Certificate of Insurance in accordance with FAR 52.228-5 "Insurance - Work on a Government Installation" and "Required Insurance".
- g. The offeror is reminded it shall offer on any issued plans, drawings, and specifications as amended. Any deviations, conditions or attachments made by the offeror itself may render the offer non-responsive and may be cause for its rejection.

10. All services shall be performed in accordance with the Performance Work Statement (PWS)

11. All offers shall remain valid for 120 calendar days.

12. SAM unique ID#:
13. CAGE(commercial and government entity)code
14. Federal Tax ID
15. ****This project is small business set aside under NAICS 561730 with the business size standard of \$9,000,000.00.
16. Multiple proposals will not be accepted
17. The following are part of this solicitation: See Attachments Section

CONTRACT ADMINISTRATORS:

Army Contracting Command - New Jersey

Timothy McCleary, Contract Specialist Timothy.j.mccleary.civ@army.mil

Theresa Eckstein, Contracting Officer Theresa.m.eckstein.civ@army.mil

CUSTOMER:

United States Army 99TH Readiness Division Scott Kawski

Scott.w.kawski.civ@army.mil

PERFORMANCE LOCATION:

140 Stewart Road Ashley, PA 18706

PERIOD OF PERFORMANCE:

12-month base year and four 12-month options

ACC-NJ LOCAL CLAUSES HQ LEVEL PROTEST

If you have complaints about this procurement, it is preferable that you first attempt to resolve those concerns with the responsible contracting officer. However, you can also protest to Headquarters, AMC. The HQ, AMC-Level Protest Program is intended to encourage interested parties to seek resolution of their concerns within AMC as an Alternative Dispute Resolution forum, rather than filing a protest with the General Accounting Office or other external forum.

Contract award or performance is suspended during the protest to the same extent, and within the same time periods, as if filed at the GAO. The AMC protest decision goal is to resolve protests within 20 working days from filing. To be timely, protests must be filed within the periods specified in FAR 33.103. Send protests (other than protests to the contracting officer) to:

Headquarters U.S. Army Materiel Command

Office of Command Counsel-Deputy Command Counsel

4400 Martin Road Rm: A6SE040.001 Redstone Arsenal, AL 35898-5000 Fax: (256) 450-8840
Email: usarmy.redstone.usamc.mbx.protests@mail.mil

The AMC-level protest procedures are found at: Web Address: <http://www.amc.army.mil/amc/commandcounsel.html>

52.000-4002 LEVEL 1 ANTI TERRORIST AWARENESS TRAINING REQUIREMENTS FOR CONTRACTOR EMPLOYEES (OCT 2010)

1. All contractor employees requiring access to any Federally-controlled facility and logical access to Federally controlled information systems except for "national security systems" as defined by 44 U.S.C. 3542(b)(2), should be certified in Level 1 Anti Terrorism Training. The training is accessible from any computer with access to the World Wide Web and is available at <https://atlevel1.dtic.mil/at>. The contractor is responsible for ensuring that the training has been satisfactorily completed and that valid certificates of completion have been submitted to the Contracting Officers Representative (COR) with a copy furnished to the Contracting Officer. The Certificates are valid for one year, therefore, training shall be completed every year for the duration of the contract.
2. The term Federally-controlled facility is defined as: Federally-owned buildings or leased space, whether for single or multi-tenant occupancy, and approaches, all or any portion of which is under the jurisdiction, custody or control of a department or agency; Federally-controlled commercial space shared with non-government tenants. For example, if a department or agency leased the 10th floor of a commercial building, the Directive applies to the 10th floor only; Government-owned, contractor-operated facilities, including laboratories engaged in national defense research and production activities; and Facilities under a management and operating contract, such as for the operation, maintenance, or support of a Government-owned or Government- controlled research, development, special production, or testing establishment.
3. The term "Federally-controlled information system" means an information system (44U.S.C. 3502(8)) used or operated by a Federal agency, or a contractor or other organization on behalf of the agency (44 U.S.C. 3544(a)).
4. The term "contractor employee" includes employees, agents, students or representatives and all employees, agents or representatives of all subcontractors and suppliers 52.228-4000 REQUIRED INSURANCE (OCT 2010)

The Contractor shall provide, at time of proposal, the Certificate of Insurance (COI) via email to the Contracting Officer and the Contract Specialist. The COI shall be updated and sent to the Contracting Officer and Specialist on an annual basis. In Accordance with FAR Clause 52.228-5 "Insurance - Work on a Government Installation" the following minimum amount of insurance are required:

Workmen's Compensation As required by State Laws Employer's Liability Insurance \$100,000.00 per accident

General Liability Insurance - Bodily Injury Liability \$500,000.00 per occurrence

Auto Liability Insurance \$200,000.00 per person Bodily Injury \$500,000.00 per occurrence
Property Damage \$20,000.00 per occurrence

Contractor shall require the insurance company to specify contract number in the Description of Operation block of the Certificate of Insurance (COI) and the below statement.

"The policies evidencing required insurance shall contain an endorsement to the effect that any cancellation or any material change adversely affecting the Government's interest shall not be effective - (1) For such a period as the laws of the State in which this contract is to be performed prescribe; or (2) Until 30 days after the Insurer or the Contractor gives written notice to the Contracting Officer, whichever period is longer."

DISCLOSURE OF UNIT PRICE INFORMATION

This constitutes notification pursuant to Executive Order 12600, Pre-Disclosure Notification Procedures for Confidential Commercial Information (June 23, 1987), of our intention to release unit prices in response to any request under the Freedom of Information Act, 5 USC 552. Unit price is defined as the contract price per unit or item purchased. We consider any objection to be waived unless the contracting officer is notified of your objection to such posting prior to submission of initial proposals.

*** END OF NARRATIVE ***

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Product Service Description: BY - MOWING - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	16	Each		
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
0002	Product Service Description: BY - TRIMMING - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	8	Each		
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
0003	Product Service Description: BY - MAINTAIN RETENTION PONDS - PA004 Product Service Code: S208	3	Each		

	North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price				
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
0004	Product Service Description: BY - WEEDING/PLANTING BED MAINT. - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	8	Each		
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option Line Item 1001	Product Service Description: OY1 - MOWING - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	16	Each		
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				

Option Line Item 1002	Product Service Description: OY1 - TRIMMING - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	8	Each		
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option Line Item 1003	Product Service Description: OY1 - MAINTAIN RETENTION PONDS - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	3	Each		
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option Line Item 1004	Product Service Description: OY1 - WEEDING/PLANTING BED MAINT - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	8	Each		
	Additional Descriptive Data:				

	Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option Line Item 2001	Product Service Description: OY2 - MOWING - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	16	Each		
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option Line Item 2002	Product Service Description: OY2 - TRIMMING - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	8	Each		
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option Line Item 2003	Product Service Description: OY2 - MAINTAIN RETENTION PONDS - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730	3	Each		

	Pricing Arrangement: Firm Fixed Price				
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option Line Item 2004	Product Service Description: OY2 - WEEDING/PLANTING BED MAINT - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	8	Each		
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option Line Item 3001	Product Service Description: OY3 - MOWING - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	16	Each		
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option		8	Each		

Line Item 3002	Product Service Description: OY3 - TRIMMING - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price				
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option Line Item 3003	Product Service Description: OY3 - MAINTAIN RETENTION PONDS - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	3	Each		
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option Line Item 3004	Product Service Description: OY3 - WEEDING/PLANTING BED MAINT - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	8	Each		
	Additional Descriptive Data:				

	Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option Line Item 4001	Product Service Description: OY4 - MOWING - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	16	Each		
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option Line Item 4002	Product Service Description: OY4 - TRIMMING - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	8	Each		
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option Line Item 4003	Product Service Description: OY4 - MAINTAIN RETENTION PONDS - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730	3	Each		

	Pricing Arrangement: Firm Fixed Price				
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				
Option Line Item 4004	Product Service Description: OY4 - WEEDING/PLANTING BED MAINT - PA004 Product Service Code: S208 North American Industry Classification System (NAICS): 561730 Pricing Arrangement: Firm Fixed Price	8	Each		
	Additional Descriptive Data: Additional Information: Item text: Contractor shall furnish all plant, labor, materials, equipment, supervision and transportation necessary to provide ground maintenance at CHAPLAIN L J SABALIS MEM USARC/ ASHLEY GTA 140 STEWART RD ASHLEY, PA 18706 in accordance with the performance work statement.				

Continuation of Description

Requirements

99th - B06 - NEW - Grounds - PA004 - Ashley - FY26 Subject to the availability of funds. This requirement is included or provided for in the financial plan for FY26. The accounting classification will be used as shown on line items.

Continuation of Deliveries or Performance

0001	Quantity 16 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2026 To 24 Jun 2027
0002	Quantity 8 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2026 To 24 Jun 2027
0003	Quantity 3 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance

	From 25 Jun 2026 To 24 Jun 2027
0004	Quantity 8 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2026 To 24 Jun 2027
Option Line Item 1001	Quantity 16 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2027 To 24 Jun 2028
Option Line Item 1002	Quantity 8 Each Address and POC Service Performance Site DoDAAC: W25HTH

	Period of Performance From 25 Jun 2027 To 24 Apr 2028
Option Line Item 1003	Quantity 3 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2027 To 24 Jun 2028
Option Line Item 1004	Quantity 8 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2027 To 24 Jun 2028
Option Line	Quantity 16 Each

Item 2001	Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2028 To 24 Jun 2029
Option Line Item 2002	Quantity 8 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2028 To 24 Jun 2029
Option Line Item 2003	Quantity 3 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2028 To 24 Jun 2029

Option Line Item 2004	Quantity 8 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2028 To 24 Jun 2029
Option Line Item 3001	Quantity 16 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2029 To 24 Jun 2030
Option Line Item 3002	Quantity 8 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2029

	To 24 Jun 2030
Option Line Item 3003	Quantity 3 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2029 To 24 Jun 2030
Option Line Item 3004	Quantity 8 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2029 To 24 Jun 2030
Option Line Item 4001	Quantity 16 Each Address and POC Service Performance Site DoDAAC: W25HTH

	Period of Performance From 25 Jun 2030 To 24 Jun 2031
Option Line Item 4002	Quantity 8 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2030 To 24 Jun 2031
Option Line Item 4003	Quantity 3 Each Address and POC Service Performance Site DoDAAC: W25HTH Period of Performance From 25 Jun 2030 To 24 Jun 2031
Option Line Item 4004	Quantity 8 Each Address and POC Service Performance Site DoDAAC: W25HTH

Period of Performance

From

25 Jun 2030

To

24 Jun 2031

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038) (Alternate I)	2026-02	Alternate I	2026-02
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	2026-02		
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	2026-02		

52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts). (Deviation 2026-O0038)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02
52.222-54	Employment Eligibility Verification. (Deviation 2026-O0038)	2026-02
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	2026-02
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7004	Antiterrorism Awareness Training for Contractors.	2023-01		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	2024-05		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	2024-10		
252.223-7008	Prohibition of Hexavalent Chromium.	2023-01		
252.225-7001	Buy American and Balance of Payments Program.	2024-02		
252.225-7012	Preference for Certain Domestic Commodities.	2022-04		
252.225-7056	Prohibition Regarding Business Operations with the Maduro	2023-01		

Regime.

252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12
252.232-7010	Levies on Contract Payments.	2006-12
252.246-7004	Safety of Facilities, Infrastructure, and Equipment for Military Operations.	2010-10
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-4	Terms and Conditions- Commercial Products and Commercial Services. (Deviation 2026-O0038) (Alternate I)	2026-02	Alternate I	2026-02

Alternate I (Feb 2026) (Deviation 2026-O0038). When contemplating a time-and-materials or labor-hour contract, substitute the following paragraphs (a), (b), (i), (l), and (m) for those in the basic clause.

(a) The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference. As used in this clause-

Direct materials means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

Hourly rate means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are-

- (1) Performed by the contractor;
- (2) Performed by the subcontractors; or
- (3) Transferred between divisions, subsidiaries, or affiliates of the contractor under a common control.

Materials means-

- (1) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the contractor under a common control;
- (2) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;
- (3) Other direct costs (e.g., incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.);
- (4) The following subcontracts for services which are specifically excluded from the hourly rate: *[Insert any subcontracts for services to be excluded from the hourly rates prescribed in the schedule.]*; and
- (5) Indirect costs specifically provided for in this clause.

Subcontract means any contract, as defined in FAR 2.101, entered into with a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract including transfers between divisions, subsidiaries, or affiliates of a contractor or subcontractor. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) *Inspection/Acceptance.*

- (1) The Government has the right to inspect and test all materials furnished and services performed under this contract at all places and times before acceptance. The Government will perform inspections and tests in a manner that will not unduly delay the work.
- (2) If the Government performs inspection or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish and shall require subcontractors to furnish all reasonable facilities and assistance for the safe and convenient performance of these duties.
- (3) Unless otherwise specified in the contract, the Government will accept or reject services and materials at the place of delivery as promptly as practicable after delivery, and they will be presumed accepted 60 days after the date of delivery, unless accepted earlier.

(4) At any time during contract performance, but not later than 6 months (or such other time as may be specified in the contract) after acceptance of the services or materials last delivered under this contract, the Government may require the Contractor to replace or correct services or materials that at time of delivery failed to meet contract requirements. Except as otherwise specified in paragraph (b)(6) of this clause, the cost of replacement or correction shall be determined under paragraph (i) of this clause, but the "hourly rate" for labor hours incurred in the replacement or correction shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified below, the portion of the "hourly rate" attributable to profit shall be 10 percent. The Contractor shall not tender for acceptance materials and services required to be replaced or corrected without disclosing the former requirement for replacement or correction, and, when required, shall disclose the corrective action taken. _____/Insert portion of labor rate attributable to profit.]

(5)(i) If the Contractor fails to proceed with reasonable promptness to perform required replacement or correction, and if the replacement or correction can be performed within the ceiling price (or the ceiling price as increased by the Government), the Government may-

(A) By contract or otherwise, perform the replacement or correction, charge to the Contractor any increased cost, or deduct such increased cost from any amounts paid or due under this contract; or

(B) Terminate this contract for cause.

(ii) Failure to agree to the amount of increased cost to be charged to the Contractor shall be a dispute under the Disputes clause of the contract.

(6) Notwithstanding paragraphs (b)(4) and (5) of this clause, the Government may, at any time, require the Contractor to remedy by correction or replacement, without cost to the Government, any failure by the Contractor to comply with the requirements of this contract, if the failure is due to-

(i) Fraud, lack of good faith, or willful misconduct on the part of the Contractor's managerial personnel; or

(ii) The conduct of one or more of the Contractor's employees selected or retained by the Contractor after any of the Contractor's managerial personnel has reasonable grounds to believe that the employee is habitually careless or unqualified.

(7) This clause applies in the same manner and to the same extent to corrected or replacement materials or services as to materials and services originally delivered under this contract.

(8) The Contractor has no obligation or liability under this contract to correct or replace materials and services that at time of delivery do not meet contract requirements, except as provided in this clause or as may be otherwise specified in the contract.

(9) Unless otherwise specified in the contract, the Contractor's obligation to correct or replace Government-furnished property shall be governed by the clause pertaining to Government property.

(i) *Payments.*

(1) *Work performed.* The Government will pay the Contractor as follows upon the submission of commercial invoices approved by the Contracting Officer:

(i) *Hourly rate.*

(A) The amounts shall be computed by multiplying the appropriate hourly rates prescribed in the contract by the number of direct labor hours performed. Fractional parts of an hour shall be payable on a prorated basis.

(B) The rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract. Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by individuals that do not meet the qualifications specified in the contract, unless specifically authorized by the Contracting Officer.

(C) Invoices may be submitted once each month (or at more frequent intervals, if approved by the Contracting Officer) to the Contracting Officer or the authorized representative.

(D) When requested by the Contracting Officer or the authorized representative, the Contractor shall substantiate invoices (including any subcontractor hours reimbursed at the hourly rate in the schedule) by evidence of actual payment, individual daily job timecards, records that verify the employees meet the qualifications for the labor categories specified in the contract, or other substantiation specified in the contract.

(E) Unless the Schedule prescribes otherwise, the hourly rates in the Schedule shall not be varied by virtue of the Contractor having performed work on an overtime basis.

(1) If no overtime rates are provided in the Schedule and the Contracting Officer approves overtime work in advance, overtime rates shall be negotiated.

(2) Failure to agree upon these overtime rates shall be treated as a dispute under the Disputes clause of this contract.

(3) If the Schedule provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime is approved by the Contracting Officer.

(ii) *Materials.*

(A) If the Contractor furnishes materials that meet the definition of a commercial product at FAR 2.101, the price to be paid for such materials shall not exceed the Contractor's established catalog or market price, adjusted to reflect the-

(1) Quantities being acquired; and

(2) Any modifications necessary because of contract requirements.

(B) Except as provided for in paragraph (i)(1)(ii)(A) and (D)(2) of this clause, the Government will reimburse the Contractor the actual cost of materials (less any rebates, refunds, or discounts received by the contractor that are identifiable to the contract) provided the Contractor-

(1) Has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or

(2) Makes these payments within 30 days of the submission of the Contractor's payment request to the Government and such payment is in accordance with the terms and conditions of the agreement or invoice.

(C) To the extent able, the Contractor shall-

(1) Obtain materials at the most advantageous prices available with due regard to securing prompt delivery of satisfactory materials; and

(2) Give credit to the Government for cash and trade discounts, rebates, scrap, commissions, and other amounts that are identifiable to the contract.

(D) Unless listed below, other direct and indirect costs will not be reimbursed.

(1) *Other direct costs.* The Government will reimburse the Contractor on the basis of actual cost for the following, provided such costs comply with the requirements in paragraph (i)(1)(ii)(B) of this clause: ____ [Insert each element of other direct costs (e.g., travel, computer usage charges, etc. Insert "None" if no reimbursement for other direct costs will be provided. If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the elements of other direct charge(s) for that order or, if no reimbursement for other direct costs will be provided, insert 'None'".]

(2) *Indirect costs (material handling, subcontract administration, etc.).* The Government will reimburse the Contractor for indirect costs on a pro-rata basis over the period of contract performance at the following fixed price: ____ [Insert a fixed amount for the indirect costs and payment schedule. Insert "\$0" if no fixed price reimbursement for indirect costs will be provided. (If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the fixed amount for the indirect costs and payment schedule or, if no reimbursement for indirect costs, insert 'None'").]

(2) *Total cost.* The total cost to the Government for the performance of this contract shall not exceed the ceiling price set forth in the Schedule. The Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within such ceiling price. If at any time the Contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing this contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the Schedule, the Contractor shall notify the Contracting Officer giving a revised estimate of the total price to the Government for performing this contract with supporting reasons and documentation. If at any time during the performance of this contract, the Contractor has reason to believe that the total price to the Government for performing this contract will be substantially greater or less than the stated ceiling price, the Contractor shall so notify the Contracting Officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during performance of this contract, the Government has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the Contracting Officer will so advise the Contractor, giving the revised estimate of the total amount of effort to be required under the contract.

(3) *Ceiling price.* The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price in the Schedule, and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the Schedule has been increased, any hours expended and material costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.

(4) *Access to records.* At any time before final payment under this contract, the Contracting Officer (or authorized representative) will have access to the following (access shall be limited to the listing below unless otherwise agreed to by the Contractor and the Contracting Officer):

(i) Records that verify that the employees whose time has been included in any invoice meet the qualifications for the labor categories specified in the contract;

(ii) For labor hours (including any subcontractor hours reimbursed at the hourly rate in the schedule), when timecards are required as substantiation for payment-

(A) The original timecards (paper-based or electronic);

(B) The Contractor's timekeeping procedures;

(C) Contractor records that show the distribution of labor between jobs or contracts; and

(D) Employees whose time has been included in any invoice for the purpose of verifying that these employees have worked the hours shown on the invoices.

(iii) For material and subcontract costs that are reimbursed on the basis of actual cost-

(A) Any invoices or subcontract agreements substantiating material costs; and

(B) Any documents supporting payment of those invoices.

(5) *Overpayments/Underpayments.* Each payment previously made shall be subject to reduction to the extent of amounts, on preceding invoices, that are found by the Contracting Officer not to have been properly payable and shall also be subject to reduction for overpayments or to increase for underpayments. The Contractor shall promptly pay any such reduction within 30 days unless the parties agree otherwise. The Government will pay any such increases within 30 days, unless the parties agree otherwise. The Contractor's payment will be made by check. If the Contractor becomes aware of a duplicate invoice payment or that the Government has otherwise overpaid on an invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury, as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, and then at the rate applicable for each six-month period as established by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) The Contracting Officer will issue a final decision if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt in a timely manner;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer.

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR part 32 in effect on the date of this contract.

(viii) Upon receipt and approval of the invoice designated by the Contractor as the "completion invoice" and supporting documentation, and upon compliance by the Contractor with all terms of this contract, any outstanding balances will be paid within 30 days unless the parties agree otherwise. The completion invoice, and supporting documentation, shall be submitted by the Contractor as promptly as practicable following completion of the work under this contract, but in no event later than 1 year (or such longer period as the Contracting Officer may approve in writing) from the date of completion.

(7) *Release of claims.* The Contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all

liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions:

(i) Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible to exact statement by the Contractor.

(ii) Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the Contracting Officer not more than 6 years after the date of the release or the date of any notice to the Contractor that the Government is prepared to make final payment, whichever is earlier.

(iii) Claims for reimbursement of costs (other than expenses of the Contractor by reason of its indemnification of the Government against patent liability), including reasonable incidental expenses, incurred by the Contractor under the terms of this contract relating to patents.

(8) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(9) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work under this contract and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid an amount for direct labor hours (as defined in the Schedule of the contract) determined by multiplying the number of direct labor hours expended before the effective date of termination by the hourly rate(s) in the contract, less any hourly rate payments already made to the Contractor plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system that have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred that reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon written request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. Subject to the terms of this contract, the Contractor shall be paid an amount computed under paragraph (i), Payments, of this clause, but the "hourly rate" for labor hours expended in furnishing work not delivered to or

accepted by the Government shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified in paragraph (b)(4) of this clause, the portion of the "hourly rate" attributable to profit shall be 10 percent. In the event of termination for cause, the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

52.219-14 Limitations on Subcontracting. 2026-02
 (Deviation 2026-O0038)

Limitations on Subcontracting (Feb 2026) (Deviation 2026-O0038)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[Contracting Officer check as appropriate.]

[X] By the end of the base term of the contract and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-28

Postaward Small Business
Program Rerepresentation.
(Deviation 2026-O0038)

2026-02

Postaward Small Business Program Rerepresentation (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along

with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____ NAICS Code assigned to ____ contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(5) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) HUBZone joint venture eligible under the HUBZone Program.[Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

for Federal Hires.

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
(End of clause)	

52.223-11	Ozone-Depleting Substances. (Deviation 2026-O0038)	2026-02
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Ozone-Depleting Substances (Feb 2026) (Deviation 2026-O0038)

(a) Definition. As used in this clause-

Ozone-depleting substance means any substance the Environmental Protection Agency designates in 40 CFR part 82 as-

(1) Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or

(2) Class II, including, but not limited to, hydrochlorofluorocarbons.

(b) Requirement. In accordance with 40 CFR 82.84(a)(5), the Contractor shall label products that contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C. 7671j(b), (c), (d), and (e) and 40 CFR part 82, subpart E, as follows:

Warning: Contains (or manufactured with, if applicable) * ____, a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.

* The Contractor shall insert the name of the substance(s).

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice as 2-in-1 (Services Only)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>HQ0490</u>
Issue By DoDAAC	<u>W15QKN</u>
Admin DoDAAC	<u>W15QKN</u>
	<u>W56D5Q</u>

Inspect By DoDAAC	
Ship To Code	<u>W56D5Q</u>
Ship From Code	<u>N/A</u>
Mark For Code	<u>N/A</u>
Service Approver (DoDAAC)	<u>W56D5Q</u>
Service Acceptor (DoDAAC)	<u>W56D5Q</u>
Accept at Other DoDAAC	<u>N/A</u>
LPO DoDAAC	<u>N/A</u>
DCAA Auditor DoDAAC	<u>N/A</u>
Other DoDAAC(s)	<u>N/A</u>

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Scott Kawski, Scott.w.kawski.civ@army.mil

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-9	Personal Identity Verification of Contractor Personnel.	2011-01		
52.204-19	Incorporation by Reference of Representations and Certifications.	2014-12		
52.208-9	Contractor Use of Mandatory Sources of Supply or Services. (Deviation 2026-O0038)	2026-02		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.215-21	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data-Modifications. (Deviation 2026-O0038)	2026-02		
52.222-3	Convict Labor. (Deviation 2026-O0038)	2026-02		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	2026-04		
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts. (Deviation 2026-O0038)	2026-02		

52.223-5	Pollution Prevention and Right-to-Know Information.	2024-05
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02
52.228-5	Insurance-Work on a Government Installation.	1997-01
52.229-3	Federal, State, and Local Taxes.	2013-02
52.232-18	Availability of Funds.	1984-04
52.232-23	Assignment of Claims.	2014-05
52.232-39	Unenforceability of Unauthorized Obligations.	2013-06
52.233-1	Disputes. (Deviation 2026-O0038)	2026-02
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	1984-04
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02
52.242-15	Stop-Work Order.	1989-08
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-04
52.246-4	Inspection of Services-Fixed-Price.	1996-08

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	2014-09		
252.225-7002	Qualifying Country Sources as Subcontractors.	2022-03		
252.225-7048	Export-Controlled Items.	2013-06		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01		
252.243-7001	Pricing of Contract Modifications.	1991-12		

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.217-8	Option to Extend Services.	1999-11		

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 calendar days.

(End of clause)

52.217-9 Option to Extend the Term of the 2000-03
Contract.

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 60 calendar days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 calendar days days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months (months) (years).

(End of clause)

52.240-91 Security Prohibitions and 2026-02 Alternate I 2026-02
Exclusions. (Deviation 2026-
O0038) (Alternate I)

Alternate I (Feb 2026) (Deviation 2026-O0038). As prescribed in 40.205(b), substitute the following paragraph (e)(1) for paragraph (e)(1) of the basic clause:

(e) Governmentwide exclusion and removal orders.

(1) Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by any applicable FASCSA orders identified by the checkbox(es) in this paragraph (e)(1). [Contracting Officer must select either "yes" or "no" for each of the following types of FASCSA orders:]

Yes ☐ No ☐ DHS FASCSA Order

Yes ☐ No ☐ DoD FASCSA Order

Yes ☐ No ☐ DNI FASCSA Order

52.252-2 Clauses Incorporated by 1998-02
 Reference.

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far-overhaul>

(End of clause)

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation 2026-00038)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-00038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region- Representation.	2023-06
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DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.225-7000 Buy American--Balance of 2024-02
Payments Program Certificate.

BUY AMERICAN-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)

(a) Definitions. "Commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "foreign end product," "qualifying country," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7001, Buy American and Balance of Payments Program-Basic clause of this solicitation.

(b) Evaluation. The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will evaluate offers of qualifying country end products without regard to the restrictions of the Buy American statute or the Balance of Payments Program.

(c) Certifications and identification of country of origin.

(1) For all line items subject to the Buy American and Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except those listed in paragraphs (c)(2) or (3) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(4) of this provision contains a critical component or a critical item; and

(ii) For end products other than COTS items, components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country. For those end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed

55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(2) The Offeror certifies that the following end products are qualifying country end products:

Line Item Number	Country of Origin
_____	_____
_____	_____
_____	_____

(3) The following end products are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Line Item Number	Country of Origin (If known)	Exceeds 55% Domestic Content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

(4) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component or a critical item (see Federal Acquisition Regulation 25.105).

Domestic end products containing a critical component or a critical item:

Line Item Number _____

[List as necessary]

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

0001

Point of Contact: SCOTT KAWSKI 814-836-4712

0002

Point of Contact: SCOTT KAWSKI 814-836-4712

0003

Point of Contact: SCOTT KAWSKI 814-836-4712

0004

Point of Contact: SCOTT KAWSKI 814-836-4712

1001

Point of Contact: SCOTT KAWSKI 814-836-4712

1002

Point of Contact: SCOTT KAWSKI 814-836-4712

1003

Point of Contact: SCOTT KAWSKI 814-836-4712

1004

Point of Contact: SCOTT KAWSKI 814-836-4712

2001

Point of Contact: SCOTT KAWSKI 814-836-4712

2002

Point of Contact: SCOTT KAWSKI 814-836-4712

2003

Point of Contact: SCOTT KAWSKI 814-836-4712

2004

Point of Contact: SCOTT KAWSKI 814-836-4712

3001

Point of Contact: SCOTT KAWSKI 814-836-4712

3002

Point of Contact: SCOTT KAWSKI 814-836-4712

3003

Point of Contact: SCOTT KAWSKI 814-836-4712

3004

Point of Contact: SCOTT KAWSKI 814-836-4712

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Point of Contact: SCOTT KAWSKI 814-836-4712

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Point of Contact: SCOTT KAWSKI 814-836-4712

4003

Point of Contact: SCOTT KAWSKI 814-836-4712

4004

Point of Contact: SCOTT KAWSKI 814-836-4712

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Price and Past Performance

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.217-5	Evaluation of Options. (Deviation 2026-O0038)	2026-02		
52.223-1	Biobased Product Certification. (Deviation 2026-O0038)	2026-02		
52.237-1	Site Visit.	1984-04		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	2023-01		

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-2	Certificate of Independent Price Determination.	1985-04		

Certificate of Independent Price Determination (Apr 1985)

(a) The offeror certifies that-

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to-

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory-

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate

in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)

(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision ____ [insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies subparagraph (a)(2) above, the offeror must furnish with its offer a signed statement setting forth in detail the circumstances of the disclosure.

(End of provision)

52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Deviation 2026-O0038)	2026-02
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Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Feb 2026) (Deviation 2026-O0038)

(a) The Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.252-1	Solicitation Provisions	1998-02
	Incorporated by Reference.	

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://acquisition.gov/far-overhaul>

(End of provision)